

Alba Mayorga, et al. v. American Honda Motor Co., 25CV-0410

Hearing: Motions to Compel Further Responses to Interrogatories and Requests for Production

Date: September 3, 2026

TENTATIVE RULING

Alba Mayorga and Miguel Mayorga filed this lemon law action under the Song-Beverly Act on June 23, 2025, against American Honda Motor Co., Inc. (AHM).

Plaintiffs now bring two motions: 1) Motion to Compel Further Responses Requests for Production of Documents (RFPs), Set One,¹ numbers 56 and 60-69; and 2) Motion to Compel Further Responses to Special Interrogatories, Set One, numbers 70, 72, 73 and 75.

AHM opposes the motions.

Plaintiffs' counsel declares that he met and conferred with counsel for AHM and the parties are at an impasse. (Declarations of Timothy Lupinek, ¶¶ 5, 6.)

All of the interrogatories and RFPs at issue in the two motions seek information and documents regarding AHM's document retention and storage policies, including efforts to preserve relevant information and documents, policies for backing up databases, and identification of individuals responsible for the upkeep of the networks where documents are electronically stored.

AHM objected to the RFPs and interrogatories on multiple grounds, including relevance and that they are overbroad and burdensome.

Pursuant to Code of Civil Procedure section 2017.010:

[A]ny party may obtain discovery regarding any matter, not privileged, that is relevant to the subject matter involved in the pending action or to the determination of any motion made in that action, if the matter either is itself admissible in evidence or appears reasonably calculated to lead to the discovery of admissible evidence. Discovery may relate to the claim or defense of the party seeking discovery or of any other party to the action. Discovery may be obtained of the identity and location of persons having knowledge of any discoverable matter, as well as of the existence, description, nature, custody, condition, and location of any document, electronically stored information, tangible thing, or land or other property.

¹ The caption of the motion states that the motion is directed at Requests for Production, Set One, but the text of the notice of motion states that it is for Set Two. Reviewing the requests themselves, it appears that the relevant requests are in fact Set One.

“For discovery purposes, information is relevant if it “might reasonably assist a party in *evaluating* the case, *preparing* for trial, or *facilitating* settlement” (*Gonzalez v. Superior Court* (1995) 33 Cal.App.4th 1539, 1546, emphasis in original, citing Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial (The Rutter Group 1994) Discovery, ¶ 8:66.1, p. 8C-1; see also *Stewart v. Colonial Western Agency, Inc.* (2001) 87 Cal.App.4th 1006, 1013; *Lipton v. Superior Court* (1996) 48 Cal.App.4th 1599, 1612.)

Plaintiffs contend that preservation efforts are directly relevant to the adequacy of AHM’s production and spoliation issue and that Plaintiffs are entitled to know what preservation steps Defendant undertook. However, Plaintiffs do not contend or show that they have reason to believe any actual spoliation or withholding of documents has occurred.

Interrogatory no. 70 seeks a description of efforts to “preserve relevant and discoverable information in this matter (including, but not limited to, any preservation letters, the custodians upon to whom such preservation letters were sent, the efforts undertaken to prevent against the deletion or destruction of information).” This interrogatory does not seek information relevant to the subject matter of the litigation or helpful to determine any motion made in the action.

Interrogatory nos. 72, 73 and 75 ask that AHM “IDENTIFY each person responsible for the operations, maintenance, expansion, archiving and upkeep of the network (where YOUR customer contact call logs [no. 72]; YOUR DOCUMENTS regarding any pre-litigation repurchase [no. 73]; YOUR technical assistance cases between YOU and YOUR authorized repair facilities analysis YOU performed for the SUBJECT VEHICLE [no. 75]) are electronically stored from 2020 to present.”

Plaintiffs contend that these requests go to where and how Defendant maintains consumer complaint and warranty claim information—core issues under Song-Beverly and that courts consistently recognize the relevance of policies, recordkeeping, and complaints. (*Jensen v. BMW of North America, Inc.* (1995) 35 Cal.App.4th 112, 136; *Lukather v. General Motors, LLC* (2010) 181 Cal.App.4th 1041, 1051.)

However, Plaintiffs do not seek information on policies, recordkeeping, and complaints. Plaintiffs seek identification of every person responsible for the operations, maintenance, expansion, archiving and upkeep of AHM’s *network* where the various documents and information are stored. These requests are sweeping and overbroad on their face. Nor do Plaintiffs explain how identification of these individuals will assist them with evaluating the case, preparing for trial, or facilitating settlement.

As to the RFPs, the motion also “shall set forth specific facts showing good cause justifying the discovery sought by the demand.” (Code Civ. Proc., § 2031.310, subd. (b)(1).) To establish good cause, the burden is on the moving party to show by declaration both relevance to the subject matter and specific facts justifying discovery. (See Weil & Brown, Cal. Practice Guide—Civil Procedure Before Trial (The Rutter Group 2026) ¶¶ 8:1495.6—8:1495.7) No such facts showing good cause are set forth in counsel’s declaration.

In sum, the information sought in the interrogatories and RFPs at issue here is not relevant to the *subject matter* of the pending litigation or to the determination of any motion made. Rather, it seeks information related to internal AHM document storage policies, procedures, preservation efforts and staff that maintain that information, in other words, “discovery about discovery”, as described by AHM.

The authority cited by Plaintiffs is distinguishable. *County of San Benito v. Superior Court* (2023) 96 Cal.App.5th 243, which allowed discovery of this type, was an action under the Public Records Act; in that case the discovery was relevant to the subject matter of the action. The appellate court found that “[t]he trial court's determination that the requested discovery was calculated to lead to the discovery of admissible evidence is within its discretion, *considering the scope of this proceeding*.” (*Id.*, at p. 257, emphasis added.) Plaintiffs cite no California authority where discovery of this type was found relevant or compelled in a lemon law matter.

The right to discovery is broad, but not unlimited.

ORDER (PROPOSED)

Plaintiffs’ Motion to Compel Further Responses Requests for Production of Documents (RFPs), Set One, numbers 56 and 60-69 is denied.

Plaintiffs’ Motion to Compel Further Responses to Special Interrogatories, Set One, numbers 70, 72, 73 and 75 is denied.

No sanctions are awarded.